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California lawmakers can do a lot to aid LA fire recovery. Steeper looting penalties aren't part of that

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It is noteworthy that some of the earliest mentions of "looting" in news reports during this year's deadly fires in Los Angeles County made the point that there actually wasn't much of it.

Video circulated on social media purporting to show young Black men stealing goods from a home in Altadena during the Eaton Fire. But the claim was quickly debunked by KTLA reporter Chip Yost, who spoke to the impacted family and noted that the young men were residents of the house and their neighbors, who were quickly removing and bagging as much of their possessions as they could before the flames could destroy everything.

Similar scenes played out all over Altadena, Pacific Palisades, Malibu and other areas hard hit by the fires that began on Jan. 7 and spread quickly amid hurricane-force winds. Neighbors pitched in to help save pets, pictures, important documents and personal items.

It's a fairly typical response during disaster emergencies like wildfires. Neighbors tend to come together. Looting, although not unusual during violent social uprisings, is rare during natural disasters.

But fears and false reports of looting are common.

The Los Angeles Police Department, whose jurisdiction includes Pacific Palisades, took to social media in the hours after fires broke out to rebut looting rumors.

"At this time," the LAPD said on X, "we have received no information regarding looting or other criminal activity in the affected areas."

As the fires were beaten back, some people did come to the reeling neighborhoods to take advantage of the disaster, allegedly stealing goods from intact or partially destroyed homes, or in some cases sifting through ash for any valuables that somehow remained unburned.

The Los Angeles County Sheriff's Department reported six arrests for burglary, three for grand theft and seven for entering a disaster area in Altadena; and one for burglary, two for attempted burglary and one for possession of burglary tools in Malibu. The Los Angeles, Pasadena and Santa Monica police departments also made arrests in fire zones, including some for looting, but also for arson, flying unauthorized drones, possession of illegal drugs or weapons, and other non-looting-related crimes. Arrests in the evacuation areas for all crimes hovered at around 100.

In a disaster in which at least 30 people died, and in a county of 10 million people, that's a rather low number and does not point to a widespread outbreak of looting during the fires and the immediate aftermath.

So it's maddening that so many members of the California Legislature have put looting center stage, pushing bills to lengthen jail and prison sentences for theft during emergencies. It's a misdirection of public time, effort and money. And it glosses over the deep governmental failures that the fires exposed: The failure to send timely emergency evacuation orders to the west side of Altadena where at least 18 people died. The needlessly nerve-wracking false emergency warning sent to millions of county residents not affected by the fires. The lack of available water to fight the fires. Plus questions about inadequate brush clearance and confusion over just who was in charge of disaster response.

Senate Bill 571 by Sens. Bob Archuleta of Norwalk and Jesse Arreguín of Oakland will be heard Tuesday in the Senate Public Safety Committee. Assembly Bill 468 by Assemblymembers Jesse Gabriel of Encino, Jacqui Irwin of Thousand Oaks and Blanca Pacheco of Downey passed out of the Assembly Public Safety Committee earlier this month and comes to the Appropriations Committee Wednesday.

All of the lead authors are Democrats and most are considered among the Legislature's more progressive members. Parallel bills have been authored by Republican members.

The bills differ in their details but all are based on the specious premise that lengthening sentences - in some cases by four months, in others by a year or two - would dissuade would-be perpetrators who are not discouraged by current looting penalties.

CALIFORNIA'S HISTORY WITH ANTI-LOOTING LAWS What is looting? As used in California law, it means stealing during a declared emergency or in an evacuation zone. Although charged as a distinct crime rather than as a sentence enhancement, it can lengthen sentences for charges like residential burglary, grand theft and petty theft - crimes that already carry stiff penalties. Residential burglary, for example, is a felony that carries a sentence of up to six years in state prison. AB 468 would make that seven years.

It's hard to imagine a perpetrator thinking, "I'm ready to do six years, but seven? No way. I'll pass."

California law also already increases the minimum penalty for petty theft during an emergency and virtually guarantees jail time. These bills would further strip judges of authority to order no-jail probation based on individual circumstances.

The state's political foes often claim, falsely, that California is a soft on crime state. For example, after Gov. Gavin Newsom approved Los Angeles County's request to deploy the National Guard to help patrol evacuation zones, Elon Musk amplified an absurd post on X, the platform he owns, that California had previously "literally decriminalized looting."

In fact, at least two people arrested after allegedly stealing from an evacuated house in Mandeville Canyon during the Palisades fire reportedly could face life sentences under the state's notoriously tough three strikes law because they have two prior serious or violent felony convictions. That's not even including the longer sentences under current looting laws, let alone new penalties put in place if the bills become law.

California is one of only eight states with anti-looting laws. Of those, most were adopted amid 1960s race riots, but California adopted its laws after the Loma Prieta earthquake in 1989. There were only a few reports of theft during the emergency, but it was in the midst of the state's tough-on-crime era and longer sentences were popular.

The remaining 42 states prosecute and sentence thieves and vandals the same whether they commit their crimes during a state of emergency or during normal times. There is no data to support the notion that theft increases during disasters or in evacuation zones, or that any such increase, if it did exist, would be controlled by special looting-related sentences.

In fact, there is little data to suggest that longer sentences have any impact on crime at all. The authors of California's latest anti-looting bills surely know that if they have read the reports of their own legislative analysts.

So why are supposedly progressive Democrats pushing so hard to pointlessly adopt longer sentences for thefts committed during emergencies?

It may be that they feel pressure to hold someone - anyone - accountable for the overwhelming pain and loss. They recently scuttled a bill to allow fire victims to sue oil companies for their role in climate change, because it was opposed by their allies in labor. It would be likewise politically hazardous to target emergency workers for failed warning systems, or insurance companies for onerous recovery procedures. But accused thieves make popular

targets, even though they had nothing to do with the fires.

The bills also allow Democrats to continue burnishing the tough-on-crime credentials they sought last year with a legislative package to toughen sentences for shoplifters. But retail theft dropped because of stepped-up investigation and enforcement, not because of longer prison or jail terms.

Besides, criminal sentences don’t give their constituents what they need.

In Altadena, which historically has a large Black community, members of the Essie Justice Group made more than 500 calls to ask residents how they’re doing and what they need from their elected officials to better support their recovery. They’re still analyzing their responses, but so far, group member Sadio Woods said, “Zero percent of those folks said anything about crime or looting.”

Woods did note that some residents who returned home were stopped by officials and “questioned as looters.”

That recalls the false rumors circulated by social media about supposed looters who were actually friends and family helping to save precious belongings. And it raises a troubling but undeniable concern about the effect of racism during disasters.

By Robert Greene. This article was originally published by CalMatters.

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